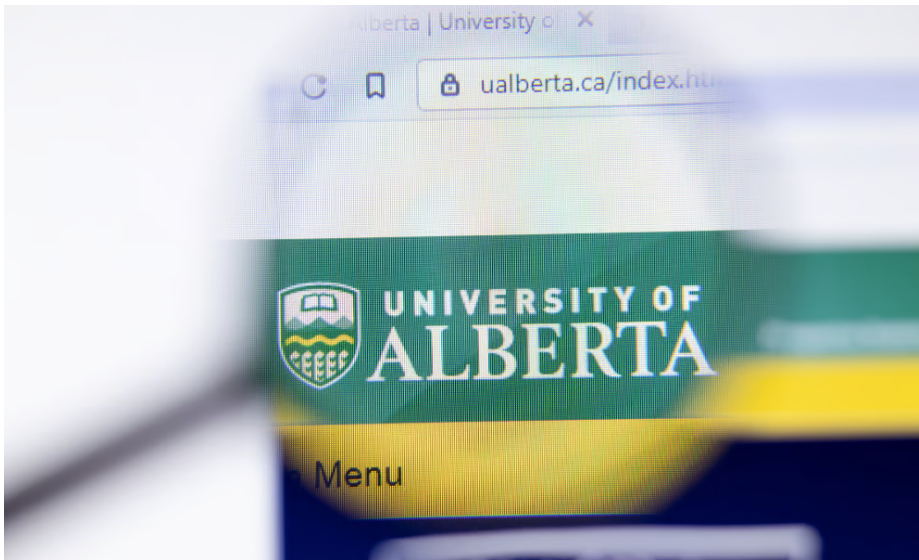


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Union can't appeal removal of professor with controversial views on gender from chair role: Alta CA

Kathleen Lowrey lost her role at the University of Alberta after she expressed her views



By [Jessica Mach](#)

Nov 04, 2024 / [Share](#)

The Alberta Court of Appeal has dismissed a union's challenge to the University of Alberta's decision to remove a tenured professor from an administrative role after she expressed controversial views on

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gender, ruling that the union's appeal does not raise any question of law.

In a decision published Friday, the court said that while the union's challenge raises questions that are "interesting and of significance" to the professor and the union, courts cannot grant appeals if no clear legal question is at stake.

"It is an applicant's responsibility to clearly define and articulate the proposed question of law, to prevent 'generalized complaints about the outcome, masquerading as questions of law' from proceeding," Justice Dawn Pentelchuk wrote.

The justice noted that the arbitrator who first oversaw the dispute was tasked with assessing the facts of the case to determine whether the professor's removal breached the union's collective bargaining agreement with the university.

"Theoretically, an extricable question of law might emerge from such an undertaking, but on a review of the materials before me, no such question of law has been identified," Pentelchuk said. "The application must therefore be dismissed."

In 2020, the University of Alberta removed Kathleen Lowrey, a tenured professor, from her role as associate chair of the department of anthropology after she expressed "controversial academic views regarding transgendered people and the LGBTQ2S+ community," the court said.

In a [National Post story](#) about Lowrey's dismissal, the professor said her views on feminism boil down to "a few key ideas: men cannot get pregnant, lesbians don't have penises and that biological sex is real."

The Association of Academic Staff of the University of Alberta, an academic staff union representing about 4,000 members, filed a grievance over Lowrey's removal. Alleging that the university dismissed Lowrey for her "gender-critical" perspective, the union argued that the university breached their collective bargaining agreement by failing to "uphold and protect academic freedom



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and exercise its management rights in a fair, reasonable, equitable and non-arbitrary manner,” according to the court’s decision.

The arbitrator presiding over the dispute sided with the university, finding that the school did not breach the collective bargaining agreement. The arbitrator reasoned that the school did not remove Lowrey based on her views but for her role as a “protagonist in a dispute” that prevented her from effectively serving as an associate chair.

After the union appealed the decision, the Alberta Labour Relations Board made the same determination as the arbitrator. According to the court of appeal, the board said the arbitrator made a reasonable conclusion about “whether Dr. Lowrey was removed from her position as associate chair due to her academic views, or because of the specific situation which unfolded at the university.”

The court of appeal upheld the arbitrator and ALRB’s decisions. The court said part of the union’s argument “is largely a complaint or disagreement about the [arbitrator’s] interpretation and weight given to the evidence” but does not identify any actual legal errors by the arbitrator.

The court added that the ALRB correctly applied a legal framework in its analysis.

“No extricable error of law arises from the board’s determination that the arbitrator drew a rational and transparently articulated line between the Grievor’s academic views, which he found were not the basis for the university’s decision, and her suitability to carry out the role given the circumstances that had developed, which he found was the basis for the university’s decision,” the court said.

Counsel for the University of Alberta declined to comment on the matter. Counsel for the union did not respond to a request for comment.